

**SUPREME COURT STATE OF NEW YORK
NEW YORK COUNTY**

Dwaine Johnson,

Plaintiff,

v.

City of New York, PO Atik Hossain and Sgt Son
Cao

Defendants.

SUMMONS

To the above-named defendants:

You are hereby summoned and required to serve upon the Clerk of the Court of the Supreme Court of the State of New York, 851 Grand Concourse Bronx, NY 10451 within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis for venue is CPLR § 503, the county in which some or all of the events occurred.

Dated New York, New York
11 March 2019

 /s/
GREGORY ANTOLLINO, ESQ.
Antollino, PLLC
Attorney for Plaintiff
275 Seventh Avenue # 705
New York, New York 10001

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COMPLAINT

It is said that there are two things we all know about life are death and taxes. Similarly, one could say two things we know about New York City are crowded subways and police actors are pressured to make arrests. One could add that the arrests are disproportionally of black people, particularly black men.

1. Venue is correct in this county because the incident occurred here.
2. On July 13, 2017, claimant was at the subway station at 86th and Lexington Avenue - the express 4 or 5 going uptown - and was observing all laws.
3. He moved from a crowded platform into a crowded subway car.
4. He grabbed a railing.
5. He was followed by defendants P.O. Atik Hossain and Sergeant Son Cam.

6. It was about 4:24 PM. Hossain was about to get off of his shift, unless he made another arrest.

7. Upon information and belief, Hossain is in the upper ten percent of officers who earn overtime in the City of New York.

8. Plaintiff entered the crowded rush hour subway.

9. There were no seats. To steady himself, he, like anyone in his situation needed to grab a rail in the subway.

9. He did so. As chance would have it, he stood behind a woman. Presumably women are approximately 50% of the people in the subway, standing or sitting.

10. Plaintiff is a black man of approximately 58 years of age, about 5'8".

11. He happened to stand behind a younger, taller woman whom Hossain probably thought attractive.

12. The train stopped at 125th Street. The taller woman was removed from the train by Son. Hossain remained on the train.

13. Plaintiff remained on the train as well, as he was going home to the Bronx.

14. At 138th Street, Hossain ordered him to leave the train. Plaintiff had no idea why, but he complied with the order.

15. Hossain then arrested plaintiff for the crime of forceable touching.

Plaintiff was placed in cuffs. He was humiliated as he sat there waiting for a half an hour.

16. Hossain then took plaintiff back to 125th Street in cuffs, at which time he waited another half hour in plain view, humiliated.

17. Plaintiff was then held for a day in custody and was released on \$1,500 bail, which fortunately he could come up with.

18. He was released, but went back to court for another several times, at which time he was tried and acquitted of all charges on 2/15/17.

19. The tall woman - who would have been the complainant and whom plaintiff did not know - wanted nothing to do with the trial. She would not testify.

20. She would not testify because there was not a scintilla of evidence that plaintiff had done anything wrong: He was innocent.

21. Based on this humiliating experience where plaintiff was subject potentially to six years in jail, plaintiff now sues for redress.

FIRST CAUSE OF ACTION
FALSE ARREST AND IMPRISONMENT

22. Plaintiff repeats and re-alleges all previous paragraphs.

23. Defendant Hossain had no probable cause to harass plaintiff. An older black man standing next to a younger, attractive woman on a crowded subway does not amount to probable cause.

24. Hossain, with Son's cooperation, arrested plaintiff simply because of appearance, including but not limited to his race. A similarly situated white man would not have been so stopped.

25. As a result of the foregoing, plaintiff has suffered and continues to suffer mental anguish, emotional distress, and other compensable injuries as a result of Defendants' retaliatory practices.

SECOND CAUSE OF ACTION
MALICIOUS PROSECUTION

26. Plaintiff repeats and re-alleges previous paragraphs.

27. Plaintiff was falsely arrested and falsely charged with forcibly touching the taller woman.

28. Defendants knew they were making an arrest without probable cause, and they should have known not to proceed with the arrest especially after the taller woman did not want to be involved.

29. As a result of the foregoing plaintive has been damaged.

THIRD CAUSE OF ACTION
VIOLATION OF THE NEW YORK CITY HUMAN RIGHTS LAW
§ 14-151 Bias-based Profiling

30. Plaintiff repeats and re-alleges paragraphs 1 through 29 as if each paragraph is repeated and re-alleged verbatim herein.

31. Defendants violated the New York City Human Rights Law insofar as they profiled plaintiff because of his age and race and differently than

citizens of other groups.

32. Indeed, the evidence will show that Hossain's arrests have overwhelmingly been of black people for petty crimes more often than white people or those of other races, and that this is because of a culture within the New York City Police Department. He also wanted overtime and saw an opportunity to get some by profiling an older black man literally minding his own business on the way home.

33. As a result of the foregoing plaintiff has been damaged.

FOURTH CAUSE OF ACTION
FAILURE TO PROTECT 42 U.S.C. § 1983

34. Plaintiff repeats and re-alleges paragraphs 1 through 33 as if each paragraph is repeated and re-alleged verbatim herein.

35. Upon information and belief, Son knew Hossain liked to make arrests and obtain overtime and witnessed what has been described above and did nothing to stop it, despite her sworn oath under the constitution to enforce it.

36. As a result of the foregoing plaintiff has been damaged.

FIFTH CAUSE OF ACTION
FALSE ARREST AND MALICIOUS PROSECUTION
42 U.S.C. § 1983

37. Plaintiff repeats and re-alleges paragraphs 1 through 36 as if each paragraph is repeated and re-alleged verbatim herein.

38. All claims but the City Human Rights Law protection against

targetting are protected under 42 U.S.C. § 1983 and plaintiff demands redress against both Hossain and Son.

WHEREFORE, Plaintiff demands judgment against the Defendants:

- i. Awarding plaintiff compensatory damages;
- ii. Awarding him costs, attorney fees and expenses in the amount to be proved if plaintiff prevails;
- iii. Awarding damages for emotional distress in accordance with proof; and
- iv. Awarding punitive damages under the NYCHRL and 42 U.S.C. § 1983, which, combined with (i), infra, exceed \$25,000;
- v. Awarding other relief that Plaintiff be shown to be entitled.

Dated: New York, New York
11 March 2019

/s/
Gregory Antollino
275 Seventh Avenue Suite 705
New York, New York 10001
(212) 334-7297